

		improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].) Here, the Court signed and entered judgment on 05/22/2026. (ROA 351.) Plaintiff served a written notice of entry of the judgment on 05/29/2026. (ROA 357.) 15 days after 05/29/2026 is Saturday, 06/13/2026. Defendant, however, did not file and serve the Memorandum of Costs until 07/13/2026. (ROA 359.) As such, the Memorandum of Costs is untimely and STRICKEN. The Motion is GRANTED. Defendant's objections to the declaration of John Gulino are OVERRULED. <i>Plaintiff to give notice.</i>
104	Vicente vs. San Remo Villas Homeowners Association, 25-01531185	Plaintiff, Christina Vicente ("Plaintiff"), demurs to the Answer to Complaint filed by Defendant, San Remo Villas Homeowners Association (the "HOA"), on the grounds that HOA's affirmative defenses numbered 3-21 do not state facts sufficient to constitute a defense and are uncertain under Code of Civil Procedure section 430.20(a) and (b). Plaintiff contends that the HOA's Answer contains irrelevant boilerplate defenses devoid of any facts defying California law, and that there are no facts included anywhere for the third through twenty-first affirmative defenses, such that the demurrer must be sustained in its entirety, without leave to amend, should the HOA be unable to meet its burden to establish that it can adequately plead each of the listed affirmative defenses supported by well-pled facts. The HOA contends that the Answer pleads ultimate facts to support the identified affirmative defenses set forth in the Answer to put Plaintiff on notice of the basis for them, that the HOA need not prove the affirmative defenses at the time the Answer is filed, and that if the court is inclined to sustain the demurrer, it should be with leave to amend. There are three grounds for a demurrer to an answer: (a) the answer fails to state sufficient facts to constitute a defense; (b) the answer is uncertain (including ambiguous and unintelligible); and (c) if the answer pleads a contract, it cannot be ascertained from the answer whether the

contract is written or oral. (Code Civ. Proc. § 430.20; *Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 880.)

A general demurrer to an answer admits all facts well pleaded in the answer, including denials. (*Warren v. Harootunian* (1961) 189 Cal.App.2d 546, 548.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal App.4th 612, 616.)

An answer may include a general denial, specific denial or new matter constituting a defense. (Code Civ. Proc. §431.30(b).) A general denial in an answer puts in issue the material allegations of the complaint, including all essential elements of the claims. (*Advantac Group, Inc. v. Edwin’s Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.) “New matter” is something relied on by a defendant which is not put in issue by the plaintiff, and including any issue on which defendant bears the burden of proof which must be specially pleaded in the answer. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 239; *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-813) “Affirmative defenses must not be pled as “terse legal conclusions,” but “rather ... as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’” (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *see also Westly v. Calif. Public Employees’ Retirement System Bd. of Administration* (2003) 105 Cal.App.4th 1095, 1118 [finding affirmative defenses of waiver and laches consisted of legal conclusions that could not survive a demurrer].)

“An affirmative defense must be pleaded in the same manner as if the facts were set forth in a complaint. In other words, the general requirement of stating the ultimate facts applies and, where particularity in pleading is necessary in a complaint, it is equally necessary in an affirmative defense involving the issue. (*Bruck v. Tucker* (1871) 42 C. 346, 352; *Greiss v. State Inv. & Ins. Co.* (1893) 98 C. 241, 244, 33 P. 195; *Bradbury v. Higginson* (1914) 167 C. 553, 557, 140 P. 254 [if matter set up is equitable cause of action, answer must contain all averments essential to statement of cause of action as

such].)” (5 Witkin, *Cal. Proc.* (6th ed. 2024) Method of Pleading, § 1122.) “ ‘ “In order to plead a cause of action, the complaint must contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language.’ [Citation.] While it is true that pleading conclusions of law does not fulfill this requirement, it has long been recognized that ‘[t]he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. [Citations.] For example, the courts have permitted allegations which obviously included conclusions of law and have termed them “ultimate facts” or “conclusions of fact.” ’ [Citations.] What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” ’ [Citation.]” (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 452.)

“An important difference is that in the case of a demurer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733, internal quotation marks omitted.) Waiver and estoppel are affirmative defenses which ordinarily must be pleaded specially unless it appears on the face of the complaint. (*Calif. Academy of Sciences v. County of Fresno* (1987) 192 Cal.App.3d 1436, 1442 [waiver and estoppel]; *Roam v. Koop* (1974) 41 Cal.App.3d 1035, 1044 [estoppel].)

“[L]iberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. [Citations.]” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Upon examination of the Answer and Complaint, the Court finds as follows.

The HOA’s third affirmative defense of waiver and ninth affirmative defense of estoppel are not pleaded specially,

		and do not appear on the face of the Complaint. The Court SUSTAINS, with 20 days' leave to amend, the demurrer to the third and ninth causes of action. The HOA's fourth affirmative defense of failure to mitigate, fifth affirmative defense of failure to comply with a condition precedent, sixth affirmative defense of excuse, seventh affirmative defense of unclean hands, eighth affirmative defense of performance and satisfaction, tenth affirmative defense of good faith, eleventh affirmative defense of "Want of Ordinary Care on Behalf of Tenant," thirteenth affirmative defense of substantial compliance, sixteenth affirmative defense of comparative fault of Plaintiff, seventeenth affirmative defense of comparative fault of others, and eighteenth affirmative defense of assumption of the risk are pled as "terse legal conclusions" and fail to state facts sufficient to constitute each affirmative defense asserted above which renders the each of these affirmative defenses uncertain. The Answer and Complaint do not contain sufficient facts to apprise Plaintiff of the basis upon which the HOA is asserting these affirmative defenses. The Court SUSTAINS, with 20 days' leave to amend, the demurrer to the fourth, fifth, sixth, seventh, eighth, tenth, eleventh, thirteenth, sixteenth, seventeenth, and eighteenth affirmative defenses. The HOA's fourteenth affirmative defense of "Legitimate Business Interest," fifteenth affirmative defense of "Notice," nineteenth affirmative defense of laches, twentieth affirmative defense of economic loss rule, and twenty-first affirmative defense of due care allege sufficient facts to constitute each affirmative defense. The Court OVERRULES the demurrer to the fourteenth, fifteenth, nineteenth, twentieth, and twenty-first affirmative defenses. The HOA's twelfth affirmative defense of request for attorneys' fees appears to be a claim for affirmative relief as the HOA asserts that it is "entitled to their attorney's fees in defending this action pursuant to Civil Code § 1717." "Affirmative relief may not be claimed in the answer." (Code Civ. Proc. § 431.30(c).) The Court SUSTAINS, without leave to amend, the demurrer to the twelfth affirmative defense. The Case Management Conference is continued to 12/10/2026 at 1:30 p.m.
--	--	--

		<i>Plaintiff to give notice.</i>
105	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<i>Off-calendar.</i>
106	Orange Tint, Inc. vs. Lim, 23-01367250	<u>Demurrer to Second Amended Complaint</u> Defendants Andrew Byung Hoon Lim and Optima Window Film demur to Plaintiff Orange Tint, Inc.'s Second Amended Complaint ("SAC") and the causes of action alleged therein. <i>First Cause of Action for Trade Secret Misappropriation</i> Under the California Uniform Trade Secrets Act ("CUTSA"), trade secret misappropriation means improper acquisition, or non-consensual disclosure or use of another's trade secret. (Civ. Code, § 3426.1, subd. (b).) " 'Trade secret' means information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civ. Code, § 3426.1, subd. (d).) "With respect to the general availability of customer information, courts are reluctant to protect customer lists to the extent they embody information which is 'readily ascertainable' through public sources, such as business directories. (<i>American Paper & Packaging Products, Inc. v. Kirgan</i> (1986) 183 Cal.App.3d 1318, 1326, 228 Cal.Rptr. 713.)" (<i>Morlife, Inc. v. Perry</i> (1997) 56 Cal.App.4th 1514, 1521.) However, courts will prohibit former employees from using information where the employer has expended time and effort to identify customers with particular needs or characteristics. (<i>Morlife, supra</i>, 56 Cal.App.4th at p. 1521.) "As a general principle, the more difficult information is to obtain, and the more time and resources expended by an employer in gathering it, the more likely a court will find such information constitutes a trade secret. [Citation.]" (<i>Id.</i> at pp. 1521-1522.) A customer list qualifies as a trade secret if it provides a "substantial business